

**DISPOSITION OF CHARGES**

PD 468-142A (Rev. 1-06)

CASE NO.
2021-23437
BOOK & PAGE NO.
Page 1 of 1
PERSONNEL ORDER NO.

SPECIFICATIONS AGAINST RANK/SURNAME Deputy Chief Pilecki,	FIRST Michael	M.I.	COMMAND Transportation Bureau
SHIELD NO. 00000	TAX REGISTRY NO. 880208	DATE APPOINTED January 3, 1983	
RANK/NAME OF COMPLAINANT Deputy Chief Prosecutor Suzanne D. O'Hare			COMMAND CCRB - Administrative Prosecution Unit
DATE OF CHARGES May 25, 2021	DATE TRIAL COMMENCED August 1, 2023	DATE TRIAL CONCLUDED August 2, 2023	

TRIAL COMMISSIONER

Honorable Paul M. Gamble

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY
		PLEA ☐ TRIAL ☒
1. Deputy Chief Michael Pilecki, on or about June 3, 2020, at approximately 2050 hours, while assigned to Transportation Bureau and on duty in the vicinity of East 64 th Street and 3 rd Avenue, New York County, abused his authority as a member of the New York City Police Department, in that he seized § 87(2)(b) bicycle without sufficient legal authority.	NOT GUILTY	It is recommended that Respondent be found Not Guilty.
2. Deputy Chief Michael Pilecki, on or about June 3, 2020, at approximately 2050 hours, while assigned to Transportation Bureau and on duty in the vicinity of East 64 th Street and 3 rd Avenue, New York County, abused his authority as a member of the New York City Police Department in that he seized an individual's bicycle without sufficient legal authority.	NOT GUILTY	

Reviewed by Deputy Commissioner of Trials

R. Maldonado
DEPUTY COMMISSIONER

9/11/2023
DATE

Police Commissioner's Approval:

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

9/22/23
DATE



POLICE DEPARTMENT

September 11, 2023

-----X

In the Matter of the Charges and Specifications	:	
	:	Case No.
- against -	:	2021-23437
Deputy Chief Michael Pilecki	:	
Tax Registry No. 880208	:	
Transportation Bureau	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Nishat Tabassum, Esq.
Civilian Complaint Review Board
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New York, NY 10007

For the Respondent: Louis C. La Pietra, Esq.
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To:

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POLICE COMMISSIONER
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CHARGES AND SPECIFICATIONS

1. Deputy Chief Michael Pilecki, on or about June 3, 2020, at approximately 2050 hours, while assigned to Transportation Bureau and on duty in the vicinity of East 64th Street and 3rd Avenue, New York County, abused his authority as a member of the New York City Police Department, in that he seized § 87(2)(b) bicycle without sufficient legal authority.

P.G. 203-10, Page, Para 5

PUBLIC CONTACT --
PROHIBITED CONDUCT

2. Deputy Chief Michael Pilecki, on or about June 3, 2020, at approximately 2050 hours, while assigned to Transportation Bureau and on duty in the vicinity of East 64th Street and 3rd Avenue, New York County, abused his authority as a member of the New York City Police Department in that he seized an individual's bicycle without sufficient legal authority.

P.G. 203-10, Page, Para 5

PUBLIC CONTACT --
PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on August 1 and 2, 2023. Respondent, through his counsel, entered a plea of Not Guilty to the charged misconduct. CCRB called Carlo Vescovi and § 87(2)(b) as witnesses. Respondent called retired Chief of Department Terrence Monahan and Deputy Inspector Nicola Ventre as witnesses; he also testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, the Tribunal finds Respondent Not Guilty of the charged misconduct.

ANALYSIS

1. Introduction

The issue in this case is whether a senior executive of this Department may be found to have committed misconduct based upon acts that may have been negligently performed by an

unknown subordinate police officer, either operating under a lawful grant of authority during a state of emergency or while taking police action against individuals who were violating the Penal Law. This theory of liability is against the weight of precedent in administrative tribunals, as well as this Tribunal's jurisprudence. While CCRB's approach may be novel, this Tribunal will evaluate it, based upon the evidence presented at trial and applicable legal precedent.

2. Undisputed Facts

On June 1, 2020, then-Mayor Bill de Blasio declared a State of Emergency in the City of New York. The emergency arose from the combination of the COVID-19 pandemic and the public demonstrations regarding the in-custody death of George Floyd in Minneapolis, Minnesota, on May 28, 2020. On June 1, 2020, the Mayor imposed a citywide overnight curfew (Emergency Executive Order No. 117). The curfew barred individuals from leaving their homes between 2300 hours on June 1, 2020, to 0500 hours on June 2, 2020 (*Id.*). On June 2, 2020, the Mayor extended the original curfew until June 7, 2020, and modified the hours, requiring residents to be home between 2000 hours and 0500 hours (T. 181-82; Emergency Executive Order No. 119). That curfew went into effect on June 3, 2020; violation of the order was penalized as a Class "B" misdemeanor (Emergency Executive Order No. 119). The order did not apply to "police officers, peace officers, firefighters, first responders, and emergency medical technicians, individuals traveling to and from essential work and performing essential work, people experiencing homelessness and without access to a viable shelter, and individuals seeking medical treatment or medical supplies" (*Id.*).

On June 3, 2020, Respondent was the acting Chief of Transportation (T. 176-77, 202). In coordination with the Mayor, the Chief of Department, the Chief of Patrol, and the Chief of Intelligence, he developed a comprehensive plan to address how various actors used bicycles

during the Emergency (T. 177-80, 194-95, 197-98, 204-06). Members of Service were deployed to various areas of the City to enforce the curfew and address other criminal activity (T. 181-82, 191-92, 195-96, 203; Resp. Ex. C).

At approximately 2050 hours, a large crowd of demonstrators holding signs completely filled the roadway on East 64th Street, between Third and Lexington Avenues (T. 120, 122, 131, 145, 148; CCRB Ex. 1). People standing in the area were shouting and chanting, “F k the curfew” (CCRB Ex. 1). § 87(2)(b) was standing in the middle of Third Avenue near East 64th Street with other individuals, holding his bicycle (T. 120; CCRB Ex. 1). Police officers were walking back and forth through the intersection of Third Avenue and 64th Street (CCRB Ex. 1). While there are several police vehicles, with their turret lights activated, stopped on Third Avenue from East 65th Street to East 64th Street, there were no other vehicles operating in the roadway (*Id.*). One demonstrator was seated in the middle of Third Avenue (*Id.*).

Sergeant Alberto Espinal, assigned to the Citywide Traffic Task Force, seized § 87(2)(b) bicycle (T. 120-21). Espinal also seized the bicycle of an unidentified individual near where § 87(2)(b) was standing (T. 124, 140-41; CCRB Ex. 1). § 87(2)(b) was not issued a summons and did not receive a voucher for the bicycle (T. 123-24). He did not follow Sergeant Espinal at that time to learn what the disposition of his bicycle would be; he also did not go to the precinct in which the bicycle was seized or his local precinct in an attempt to seek its return (T. 123, 139-40). As of the hearing date, § 87(2)(b) bicycle has yet to be returned to him (T. 123).

3. Trial Evidence

a. CCRB's case

Carlo Vescovi testified that he is an investigator with the Civilian Complaint Review Board; in that capacity, he investigated a complaint initiated by § 87(2)(b) about the

seizure of his bicycle on June 3, 2020 (T. 21-23). Vescovi interviewed § 87(2)(b) by telephone; § 87(2)(b) later sent Vescovi a video he recorded on his mobile telephone (T. 23-26; CCRB Ex. 1).

During Vescovi's investigation, he interviewed Respondent and several other police officers.¹ (T. 27-29, 44, 48-56, 59-70); CCRB Exs. 2, 2A). During his interview with Respondent, he played the video recording in CCRB's Exhibit 1; Respondent identified himself and Sergeant Espinal in the video (T. 29). Vescovi testified that his investigation led him to believe that Respondent had committed misconduct because he had directed police officers subject to his authority to seize bicycles, and those police officers failed to properly document the seizures with vouchers (T. 78, 83).

Vescovi conceded on cross-examination that he had no evidence that Respondent had personally seized any bicycles; he further acknowledged that Respondent told him during his interview that the bicycles were seized because the owners were present on the street in violation of the curfew and that they were obstructing traffic on Third Avenue (T. 79).

b. Respondent's Case

Retired Chief Terrence Monahan testified that on June 3, 2020, he was the Chief of Department (T. 177). He was responsible for implementing this Department's response to the concomitant public safety challenges of the George Floyd protests, acts of violence that occurred around protest activity, and the COVID-19 pandemic (T. 185). In particular, he was made aware, through consultations with the Chief of Patrol, Chief of Intelligence, and the Deputy Commissioner, Counterterrorism and Intelligence, that certain individuals on bicycles were

¹ Lieutenant Regina Otoo and Sergeant Alberto Espinal were not called as witnesses at the trial; counsel for Respondent did, however, cross-examine Vescovi extensively regarding the information he obtained from his interviews with them.

compounding the pre-existing public safety challenges by collecting intelligence on police responses to public disturbances, providing warning of the deployment of police personnel and blocking police vehicles from responding to crimes in progress (T. 178-80).

Chief Monahan testified that a plan was developed to issue summonses to anyone who violated the curfew or committed an offense under the Penal Law; if that individual were a bicyclist, the bicycle would be seized as arrest evidence (T. 179-80). If the individual whose bicycle was seized ran away from police after the seizure, the bicycle would be vouchered as “found property” (T. 180, 184). This plan was communicated to all the participants on the daily conference calls with Department executives, including Respondent (T. 180-81, 183).

Deputy Inspector Nicola Ventre testified that on June 3, 2020, he was the commanding officer of the Traffic Operations District (T. 190). In particular, he was assigned to enforce the citywide curfew on the East Side of Manhattan, from 59th Street to lower Manhattan (T. 191). To facilitate the completion of that mission, he had one captain, several lieutenants, several sergeants, and numerous officers assigned to him (T. 192). D.I. Ventre identified a roster of police officers assigned to his command on June 3, 2020; these police officers were charged with public disturbance control, enforcing the curfew, and deterring vandalism (T. 193; Resp. Ex. C).

D.I. Ventre testified that on June 3, 2020, before the curfew went into effect at 2000 hours, he held a briefing for the supervisors in his command in which they discussed procedures for bicycle enforcement operations (T. 195). According to D.I. Ventre, in enforcing the curfew, they would seize bicycles and give the riders a summons or provide a property voucher receipt (T. 195-98). He testified further that he had no expectation that supervisors would seize bicycles and issue vouchers, as that was an assignment for police officers (T. 196).

Respondent testified that on June 3, 2020, he was the acting Chief of the Transportation Bureau, responsible for the Highway District, Citywide Traffic Task Force, Traffic Enforcement District, and the Joint Traffic Management Center (T. 202-03). In that capacity, he was involved in planning the Transportation Bureau's field deployment during the George Floyd protests (T. 203). He participated in executive-level meetings with the Police Commissioner, Chief of Department, bureau chiefs, and executive staff to assess Department staffing, crime trends, vehicle collisions, and vehicular fatalities (T. 204-05).

On June 3, 2020, Respondent attended a meeting with the Police Commissioner and Chief of Department, at which they discussed the civil unrest the city was experiencing and the use that specific individuals had made of bicycles in steering protesters and scouting police movements (T. 205). He was directed to take a more stringent approach to enforcing curfew restrictions, mainly as they applied to bicyclists (*Id.*).

Respondent testified that he prepared an analysis of bicycle enforcement actions taken by police officers assigned to the Patrol Bureau on June 3, 2020, and police officers assigned to the Transportation Bureau (T. 206-08; Resp. Exs. A, B). This analysis was based upon the vouchers and summonses issued that night, as contained in pretrial discovery (*Id.*) Respondent reviewed the documents and noted the times of seizures, the police officer who conducted the enforcement action, the voucher number, the classification of the voucher, the location of the enforcement action, the name of the individual against whom the enforcement action was taken, the summons number, the reason the summons was issued and the disposition of the bicycle (T. 207-08). Respondent's Exhibit A is a compilation of the data relating to Patrol Bureau police officers; Respondent's Exhibit B is a compilation of the data regarding Transportation Bureau police officers (T. 211-12).

Respondent testified that at approximately 2050 hours, in the vicinity of East 64th Street and Third Avenue, he recalled directing Sergeant Espinal, who he acknowledged was a member of his command, to “start doing some enforcement” (T. 219-20). He explained that he expected that anyone who was violating the curfew and had a bicycle would be walked toward the area where arrests were being processed, along with their bicycle; once they reached the processing area, the bicycle would be vouchered and the individual taken into custody (T. 220).

Respondent testified that he recognized the East 64th Street and Third Avenue area depicted in CCRB’s Exhibit 1. He identified himself in the video and recalled gesturing to someone whose bicycle had been seized by Sergeant Espinal and directing them to follow Espinal toward an area with flashing lights. He explained that in that area, he had required a “rack truck” to transport any seized bicycles to the Manhattan Tow Pound (T. 221-22).

Respondent testified that based upon his review of Respondent’s Exhibit B, three bicycles were seized on June 3, 2020, in the vicinity of East 64th Street and Third Avenue (T. 212). Of those three seizures, § 87(2)(b) name does not appear as a subject, nor does it appear as a subject of bicycle enforcement conducted by Patrol Bureau police officers, as compiled in Respondent's Exhibit A (T. 223). He testified that if Sergeant Espinal had indeed seized § 87(2)(b) bicycle, given there is no record of an enforcement action relating to him in either Respondent’s Exhibits A or B, then § 87(2)(b) bicycle was likely not brought to the processing area to be vouchered, or if it was, the police officers misplaced it (*Id.*).

I find Respondent's testimony before this Tribunal forthright, logical, and corroborated by evidence presented by Respondent’s Counsel. While he is an interested witness in this proceeding, his testimony was consistent with previous statements he made to CCRB investigators and remained consistent even under cross-examination.

I further find the respective testimonies of retired Chief of Department Monahan and Deputy Inspector Ventre to be clear, concise, and consistent with the independent evidence in this case. They are disinterested witnesses in this proceeding, whose testimonies evinced a professional duty to assist the Tribunal in its fact-finding function rather than to exonerate Respondent.

I find § 87(2)(b) to be a credible witness concerning the material facts concerning the seizure of his bicycle. While he took the position that the seizure was unlawful based upon a fundamental misunderstanding of the limits upon his freedom of expression, he nevertheless made admissions during his trial testimony which led me to find that he was candid with the Tribunal, despite his mistaken beliefs about his right to be present on the street during the curfew.

Finally, I find Carlo Vescovi to be a credible witness, with respect to the steps he took to investigate § 87(2)(b) complaint.

Specification 1

I find that CCRB has failed to meet its burden of proof by a preponderance of the relevant, credible evidence that Respondent abused his authority by seizing § 87(2)(b) bicycle without sufficient legal authority.

CCRB has argued that the seizure of § 87(2)(b) bicycle was wrongful, in part, because he was “exercising his constitutional right to a peaceful protest², even if he was breaking curfew”

² Vescovi and § 87(2)(b) each testified that they perceived the circumstances at East 64th Street and Third Avenue on June 3, 2020, as a peaceful protest. CCRB’s Exhibit 1, provided to CCRB by § 87(2)(b) clearly shows a crowd of protesters filling East 64th Street, blocking any traffic, whether pedestrian or vehicular. While Counsel for Respondent spent a significant amount of his cross-examination of each witness challenging these perceptions, this case turns on the authority Respondent and police officers under his command had to take the actions which form the basis of the accusations in this case, rather than whether the gathering at that location could be characterized in a particular manner.

(T. 247). While not dispositive of the issues before this Tribunal, this argument belies a fundamental misunderstanding of the law.

The First Amendment right to freedom of speech is not absolute; it is subject to reasonable time, place, and manner restrictions (*Clark v. Comty. for Creative Nonviolence*, 468 U.S. 288, 293 [1984]; *Cox v. New Hampshire*, 312 U.S. 569 [1941]; *Jeffery v City of New York*, 2022 US Dist. LEXIS12431, *18 [EDNY Jan. 24, 2022]). Any such restrictions must be content-neutral and narrowly tailored to achieve a compelling public interest. A curfew imposed as part of a city's chief executive's duty to protect the public during an emergency is a lawful exercise of his police powers. Once such a curfew is imposed, it constitutes a permitted restriction on the timing and location of the exercise of protected speech (*Jeffery v. City of New York*, 2022 US Dist. LEXIS 12431, *17-18).

§ 87(2)(b) was entitled to believe that the curfew was unjust. Notwithstanding his personal views, he was subject to arrest for being on the street in violation of the curfew. There was no evidence that the curfew was successfully challenged as exceeding the Mayor's authority to issue it; there is also no evidence that § 87(2)(b) bicycle was seized when the curfew was not in force. Even if the curfew had not been applicable at the time of the seizure, § 87(2)(b) testimony that he was standing in the street with his bicycle is an admission to obstructing vehicular traffic, an act that would violate the disorderly conduct statute, providing a separate basis for placing him under arrest (Penal Law § 240.20[5]).

Based upon the preceding analysis, Sergeant Espinal had the lawful authority to seize § 87(2)(b) bicycle, either because he was violating the curfew or committing disorderly conduct.

The second component of CCRB's argument is that since § 87(2)(b) was never presented with a voucher for his bicycle, whoever was responsible for preparing the voucher was derelict in performing their duties, and that dereliction is attributable to Respondent. Moreover, CCRB argues that failure to strictly comply with a Patrol Guide procedure dealing with the proper vouchering of property renders the seizure of that property unlawful.

First, I note that Respondent is not charged with failure to supervise Sergeant Espinal or any other police officer, nor is he charged with issuing an order to anyone under his authority explicitly dealing with the disposition of § 87(2)(b) bicycle. Following CCRB's theory of the case, Respondent is charged as an accessory to the seizure of § 87(2)(b) bicycle.

Accepting as truthful § 87(2)(b) testimony regarding his efforts to locate and retrieve his bicycle, I will infer that the primary reason he was unable to find it after Espinal seized it was due to a failure to voucher the bicycle properly. I note that the seizure of § 87(2)(b) bicycle is not captured on CCRB's Exhibit 1, and § 87(2)(b) admitted during his trial testimony that he did not follow Espinal in an attempt to maintain visual contact with it.

According to Espinal's CCRB statement, he handed the bicycle off to a police officer and directed them to voucher it; there was no evidence presented as to the identity of that officer. If that unidentified police officer was negligent in complying with the requirements of Patrol Guide procedure 218-01, they would, in theory, be subject to Department discipline for failing to voucher the property adequately *but not for seizing the bicycle without lawful authority*. CCRB presented no evidence that Respondent committed any act concerning the seizure of the bicycle beyond issuing an order to begin enforcement.

CCRB's theory of the case seems to rely upon strict liability, a concept which has no support, either in administrative disciplinary proceedings in general, or in this Tribunal's

jurisprudence (*Disciplinary Case No. 2016-16093* [Oct. 25, 2017][declining to apply strict liability to failure to secure firearm], citing *Dep't. of Correction v. Caldwell*, OATH Index No. 2702/14 [May 27, 2015], *modified on penalty, NYC Civ. Serv. Comm'n Case No. 2016-0444* [Feb. 21, 2017][“The courts long have held that employees are not held to a strict liability standard, because a finding of misconduct is not the equivalent of a finding that an administrative rule has been violated; rather, misconduct requires proof of fault”]; *Fire Dep't v. Muller*, OATH Index No. 1090/17 [May 1, 2019]; *Police Dep't v. Wenz*, OATH Index No. 132/89 [May, 12, 1989][“[a]ny strict liability standard would be inapplicable in a disciplinary hearing”).

Having put procedures in place, without evidence that Respondent personally supervised the vouchering of § 87(2)(b) bicycle or directed the unidentified police officer regarding its disposition, CCRB has failed to establish that Respondent committed misconduct. The act CCRB argues constitutes misconduct was either the negligent vouchering or the failure to voucher § 87(2)(b) bicycle by an unknown police officer. The evidence admitted at trial fails to establish a sufficient connection between Respondent and this ephemeral police officer for Respondent to be held administratively liable for misconduct.

In layperson's terms, CCRB has invited this Tribunal to put aside the evidence of a lawfully imposed curfew and § 87(2)(b) admission that he was obstructing vehicular traffic and the curfew at the time his bicycle was seized. They then invite the Tribunal to find that since § 87(2)(b) was unable to secure the return of his bicycle after police officers took it, his inability to do so transformed every lawful act performed by Respondent and the police officers under his authority into unlawful acts. CCRB advances this theory against the weight of long-standing Department precedent. Based upon the credible, relevant evidence in the record, this Tribunal cannot endorse this ill-advised approach to finding misconduct.

Based upon the foregoing, I find Respondent Not Guilty of Specification 1.

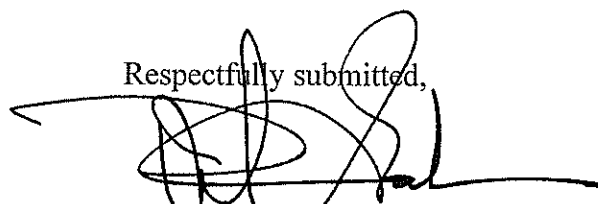
Specification 2

I find that CCRB has failed to meet its burden of proof by a preponderance of the relevant, credible evidence that Respondent abused his authority by seizing an unidentified individual's bicycle without sufficient legal authority.

Applying the same analysis to this Specification as I did under Specification 1, above, of Respondent's authority to order the commencement of bicycle enforcement, Sergeant Espinal had the lawful authority to seize the bicycle of the unidentified person captured on the video recording in CCRB Exhibit 1. Because CCRB presented no evidence of who Espinal may have given that person's bicycle to or what the disposition of that bicycle was, this Tribunal can only proceed further in the factual analysis by engaging in rank speculation. As stated above, there is no accepted legal theory of which this Tribunal is aware that would transform an otherwise lawful seizure of property into an unlawful seizure simply because an unknown subordinate police officer may have failed to follow the letter of the Patrol Guide in vouchering the property.

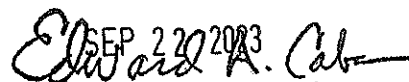
Based upon the foregoing, I find Respondent Not Guilty of Specification 2.

Respectfully submitted,



Paul M. Gamble
Assistant Deputy Commissioner Trials

APPROVED

SEP 22 2023

EDWARD A. CABAN
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

Honorable Edward A. Caban
Police Commissioner
New York City Police
Department One Police Plaza
New York, NY 10038

September 6, 2023

Re: Deputy Chief Michael Pilecki

Disciplinary Case No. 2021-23437

Commissioner Caban:

The above-referenced case was tried on August 1, 2023 and August 2, 2023, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter “CCRB”), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

Respondent, Deputy Chief Michael Pilecki was charged with the following:

1. Deputy Chief Michael Pilecki, on or about June 3, 2020, at approximately 2050 hours, while assigned to Transportation Bureau and on duty in the vicinity of East 64th Street and 3rd Avenue, New York County, abused his authority as a member of the New York City Police Department, in that he seized § 87(2)(b) bicycle without sufficient legal authority.

PG 203-10, page 1, paragraph 5 PUBLIC CONTACT – PROHIBITED CONDUCT

2. Deputy Chief Michael Pilecki, on or about June 3, 2020, at approximately 2050 hours, while assigned to Transportation Bureau and on duty in the vicinity of East 64th Street and 3rd Avenue, New York County, abused his authority as a member of the New York City Police Department in that he seized an individual’s bicycle without sufficient legal authority.

PG 203-10, page 1, paragraph 5 PUBLIC CONTACT – PROHIBITED CONDUCT

CCRB has reviewed the August 24, 2023, draft decision of Assistant Deputy Commissioner - Trials Paul M. Gamble (hereinafter, “ADCT”). We respectfully submit the

following comments regarding the draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

The Court found Respondent Pilecki not guilty of specifications one (1) and specification two (2). It is respectfully requested that you reject ADCT Gamble's finding regarding specification one (1) and specification two (2) and find the Respondent guilty and accept CCRB's recommended penalty of forfeiture of SIX (6) vacation days for the following reason:

SUMMARY OF FACTS

On June 3rd, 2020, at approximately 8:50pm, § 87(2)(b) attended a Black Lives Matter demonstration that was travelling the Upper East Side of Manhattan. As § 87(2)(b) and members of the demonstration passed East 64th Street and Lexington Avenue in Manhattan, Deputy Chief Michael Pilecki, of the City-Wide Traffic Command, ordered Sergeant Alberto Espinal, of the City Wide Traffic Command, to seize the bicycles of § 87(2)(b) and an unidentified individual. No arrests or summonses resulted from this incident.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

CCRB Exhibit 1, is the video provided by § 87(2)(b)

CCRB Exhibit 2, is the audio interview conducted by CCRB with Deputy Chief Pilecki. CCRB 2a is the transcript of the audio interview.

Investigator Carlo Vescovi provided testimony concerning his meticulous investigation into the case involving Deputy Chief Pilecki. He detailed the process of acquiring evidence, including the victim's video and the interview with Deputy Chief Pilecki. During his testimony, Investigator Vescovi highlighted that Deputy Chief Pilecki had affirmed under questioning that the directive leading to the bicycle seizure originated from him. Additionally, Deputy Chief Pilecki asserted that he had made this decision without influence from higher-ranking officers. Investigator Vescovi emphasized his impartial approach and stated his opinion that the demonstration in question was peaceful. It's noteworthy that Lieutenant Otoo, a subject of investigation, was present during part of Investigator Vescovi's cross-examination.

§ 87(2)(b) testified that on the night of the incident he was peacefully protesting. He stated that he was peacefully protesting on the night in question when his bicycle was taken without prior notice. He identified Sergeant Espinal as the officer responsible for confiscating his bicycle and noted the absence of any official warnings regarding bicycles at the demonstration. § 87(2)(b) stressed that he was not obstructing traffic on that day and mentioned that he never received a summons or voucher for his bicycle. Despite violating the curfew, § 87(2)(b) believed his constitutional right to peaceful protest remained valid. He also conveyed his attempts to recover his bicycle through interactions with Investigator Vescovi, the lack of success of which caused financial and logistical difficulties for him.

Retired Chief Terrence Monahan testified that on June 3, 2020 he was the Chief of the Department. He detailed the frequent meetings with higher-ranking officials discussing protocols and intelligence in the days preceding the event. He indicated that Deputy Chief

Pilecki would have been part of these discussions due to his rank. Chief Monahan mentioned the formulation of a plan to issue summonses for curfew violations, a plan communicated to all relevant parties, including Deputy Chief Pilecki.

Deputy Inspector Nicola Ventre's testimony centered on the operational aspects. He described having a roster of officers under his command, including Sergeant Espinal. He confirmed that instructions were given for the enforcement of curfew, which included the seizure of bicycles and the issuance of summonses or vouchers.

Respondent testified that on June 3, 2020 he was the acting Chief of the Transportation Bureau, responsible for the Highway District, Citywide Traffic Task Force, Traffic Enforcement District and the Joint Traffic Management Center. He participated in executive-level meetings. He stated after a meeting with the Police Commissioner and Chief of Department on June 3, 2020, he was directed to take a more stringent approach to enforcing curfew as they related to bicyclists. Respondent in preparation of the trial crafted an analysis of bicycle enforcement actions taken by police officers assigned to the Patrol Bureau and Transportation Bureau on the night of the incident. Respondent's Exhibit A & B was the compilation of which he based his analysis. Respondent identified himself in CCRB Exhibits 1. Furthermore, he testified that § 87(2)(b) bicycle did not appear as a subject of the bicycle enforcement conducted on the night of the incident. He testified that if Sergeant Espinal did seize § 87(2)(b) bicycle there is no record of such action, and it was possible the bicycle was misplaced.

RESPONDENT IS GUILTY OF ABUSING HIS AUTHORITY BY SEIZING § 87(2)(b)
§ 87(2)(b) BICYCLE WITHOUT SUFFICIENT LEGAL AUTHORITY

CCRB disagrees with the tribunal's finding that "evidence admitted at trial fails to establish a sufficient connection between Respondent and this ephemeral police officer for Respondent to be held administratively liable for misconduct" (Draft Decision p. 12). ADCT Gamble writes, "*they then invite the tribunal to find that since § 87(2)(b) was unable to secure the return of his bicycle after police officers took it, his inability to do so transformed every lawful act performance by Respondent and the police officers under his authority into unlawful acts*" (Draft Decision p.12).

Patrol Guide Procedure 218-01 clearly states that all property seized in conjunction with arrest must be vouchered in the proper category and documented via Property Clerk Invoice Worksheet. Absent an arrest per Patrol Guide Procedure 218-01 and Patrol Guide 208-26 property may be held for several other reasons such as investigatory purposes if ownership cannot be determined, safekeeping or for forfeiture. Furthermore, Patrol Guide 208-26 makes it clear that if applicable notice has to be prepared from whom property has been removed by the police department in clear bold and capital style.

Here, Respondent was the supervisor. He took no accountability for neither issuing the instructions nor the fact a civilian never received his property back based on the wrongdoing of his subordinate. Deputy Chief Pilecki's experience of over 40 years in the NYPD underscores his profound understanding of the significance of these protocols, which serve to protect civilians and their property, irrespective of the circumstances. However, on the night of the incident, these vital protocols seemed to vanish from his consciousness. In the midst of a peaceful protest, he

commanded his subordinates to "take those bicycles" and "seize the bikes," which led to the unwarranted seizure of § 87(2)(b) bicycle.

First, CCRB Exhibit 1 depicts how § 87(2)(b) asked Sergeant Espinal multiple times about the seizure of his bike. At that moment, Sergeant Espinal had the power to issue a summons or even arrest § 87(2)(b) but he chose not to do so. It is evident that this seizure was not justified under the department's own protocols, and yet, another bicycle was seized to comply with Deputy Chief Pilecki's directive. On page 26, line 24 Deputy Chief Pilecki clearly states these directives originated with him and no one else in the chain of command. On page 41, line 5, he clearly states that there was no further conversation between him and either officers or executives about the bicycle specifically after the command had been reinforced. Sergeant Espinal grabbed his bike and § 87(2)(b) asked questions about why it was being taken. As depicted in his video at 0:44, § 87(2)(b) asks multiple times "why did you just take my bike?" This was Sergeant Espinal's opportunity to issue summons or even arrest § 87(2)(b). Neither happened. Subsequently after as shown from § 87(2)(b) video at 0:56, another bike was seized in order to comply with Deputy Chief Pilecki's order. At 1:15 of the video Deputy Chief Pilecki is seen speaking with another officer, while Sergeant Espinal wheels the bicycle past him with the unidentified individual shortly behind the bicycle.

Second, CCRB Exhibit 2 and 2a indicates how Deputy Chief Pilecki was questioned multiple times as to whether he received directives from higher ups regarding the seizure of the bicycles. ADCT Gamble states "while he is an interested witness in this proceeding, his testimony was consistent with previous statement he made to CCRB investigators and remained consistent even under cross examination" (Draft Decision p.8). This statement is simply false. Respondent consistently stated the directives "originated" with him and only him. Had he stated that he was relaying instructions after he had received them from the daily meetings that retired Chief Monahan clearly testified to, the investigation may have concluded differently. He provided a false statement to CCRB and during the trial testified about information that he was required to disclose to CCRB investigators. To absolve him of accountability would simply be unjust.

RESPONDENT IS GUILTY OF ABUSING HIS AUTHORITY BY SEIZING AN UNIDENTIFIED INDIVIDUAL'S BICYCLE WITHOUT SUFFICIENT LEGAL AUTHORITY

CCRB disagrees with the tribunal's findings that "*there is no accepted legal theory of which this Tribunal is aware that would transform an otherwise lawful seizure of property into an unlawful seizure simply because an unknown subordinate police officer may have failed the follow the letter of the Patrol Guide in vouchering the property*" (Draft Decision p.11).

Acting under Deputy Chief Pilecki's instruction, Sergeant Espinal seized the bicycle from the unidentified individual. As depicted in § 87(2)(b) cell phone footage, CCRB Exhibit 1, Sergeant Espinal seized an unidentified individual's bicycle at 0:56. The unidentified individual briefly attempts to hold onto the handlebars before letting go. Sergeant Espinal then walks the bicycle north towards the intersection at East 64th Street, past a line of officers, and the unidentified individual follows behind at distance of approximately five feet. At minute mark 1:15 on the player timestamp, Deputy Chief Pilecki is captured on screen speaking with Lieutenant Otoo as Sgt. Espinal wheels the bicycle past him; the unidentified individual follows closely

behind.

The footage does not capture what happens with the bicycle after Sergeant Espinal walks away. The footage ends at 1:23. This individual did not flee the scene after the seizure. As no property vouchers were prepared in conjunction with any summonses issued on scene, and as no other category of seizure applied to this aspect of the incident, the seizure was done improperly. Respondent testified that he instructed officers, including Sergeant. Espinal, only to “take summons enforcement action” against protestors with bicycles and that he did not recall giving further orders regarding the seizure of bicycles. However, Respondent’s CCRB interview, in evidence proves otherwise.

For the forgoing reasons, it is respectfully requested that you reject ADCT Gamble’s findings regarding Specification one (1) and (2) and find Respondent Guilty of Specification 1 (one) and Specification 2 (two) and impose the penalty of forfeiture of 6 vacation days in accordance with the matrix.

Respectfully submitted,

Nishat Tabassum

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APU Prosecutor

NYC Civilian Complaint Review Board

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